

Riding Over **RED TAPE**

Accessing Federal Funds for Bike Advocacy

by Anna Kelso and Darren Flusche

As we patiently await the reauthorization of the transportation bill, many bike advocacy groups are beginning to ask some important questions about accessing federal funds. For bike advocates, navigating the labyrinth of government websites for guidance on accessing funds from federal programs can be an arduous task, resulting in millions of dollars left untapped for the purposes of bike infrastructure and bike safety programs.

Many changes are happening on Capitol Hill, requiring immediate action in order to secure continued access to these funds. In an effort to assist bike advocates in this process we have been working on a simplified guidance, outlining several federal programs that fund bicycle infrastructure and safety. For the purposes of this month's Think Bike article, we will provide a brief overview of three programs often

overlooked by bike advocates as a good source of funding. These programs include the Congestion Mitigation and Air Quality Act (CMAQ), the Highway Safety and Improvement Program (HSIP), and Section 402.

CMAQ

The Congestion Mitigation and Air Quality (CMAQ) Improvement Program funds transportation projects designed to improve air quality and reduce traffic congestion, especially in regions that do not meet national air quality standards (non-attainment areas) or have recently become compliant (maintenance areas). CMAQ funds have been used on a wide variety of capital projects including bicycle facilities, racks and lockers, and for marketing materials and operating costs for bicycle sharing projects. To be considered for CMAQ funding, a project must be included on a State or MPO Transportation Improvement Program (TIP). For recom-

mendations on how to get projects on the TIP and funded through CMAQ, read our report at www.bikeleague.org/resources/reports/.

HSIP

The Highway Safety Improvement Program (HSIP) is a core program of the federal transportation bill (SAFETEA-LU) and its primary purpose is to significantly reduce the number of traffic fatalities and serious injuries through infrastructure-related improvements. The allocation of HSIP funding for projects is a data driven process based on three, equally weighted, criteria: Number of Fatalities, Miles of Federal Highway, and Vehicle Miles Traveled. Some states are now also looking at risk assessments instead of fatalities alone. This is especially helpful when trying to justify funding for bike and pedestrian safety projects.

Over \$5 billion in federal funds have been apportioned to HSIP over the past four years.



Unfortunately, only 60 percent of these funds have been spent (or obligated) and less than 1 percent have been spent on bicycling safety. These funds will no longer be available if they are not obligated before they become inactive. HSIP funds can be used in the fiscal year they were apportioned plus three additional years. This means that funds that were allocated to the HSIP program in 2006 must be obligated before fiscal year 2010.

Examples of infrastructure and non-infrastructure projects funded under HSIP:

- a) Construct improvements that enhance pedestrian or bicyclist safety or safety of the disabled.
- b) Construct a traffic calming feature.
- c) Install and maintain signs (including fluorescent, yellow-green signs) at pedestrian-bicycle crossings and in school zones.
- d) Each state has developed a Strategic Highway Safety Plan

to determine how these funds are to be spent: it is critical for cyclists to be involved in updates of this plan. Contact your state Bicycle Coordinator for details.

Section 402

The primary purpose of Section 402, also referred to as the State and Community Highway Safety Grant Program, is to create highway safety programs aimed at reducing traffic crashes, deaths, injuries and property damage. Safety programs may include data analyses, education, and community safety campaigns; funds may also be used for limited safety-related engineering projects. Section 402 has been used to fund several bike and pedestrian safety programs and is a good resource for bike advocacy groups looking for federal funding.

Once Section 402 funds have been administered to the states, it is then the responsibility of the

designated State Highway Safety Offices (SHSO) to manage the program. States are allocated Section 402 funds using a formula which bases 75 percent of funding on the state's population and 25 percent on total public road miles; however, all states are entitled to no less than one-half of 1 percent of total Section 402 funds. Furthermore, a minimum of 40 percent of 402 funds must be used for the benefit of local governments. Section 402 funds may be obligated for up to three years after the year in which they were allocated.

Continue to check our website for further information and updates regarding these issues. •